

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201309131	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 09/06/2013 7:30 PM, Saturday, 09/07/2013 12:00 AM, Sunday, 09/08/2013 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/6/2015	Precinct: 41		
Date/Time CV Reported Mon, 09/30/2013 2:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/30/2013 2:01 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			Unknown
2. POM Michael Balicki	12193	932291	041 PCT
3. An officer			Unknown
4. SGT Christophe Pasquale	04418	927322	INT CIS
5. SGT Patrick Cain	01702	931572	ESS 07
6. DTS Kenrick Arthur	01603	898910	ESS 03
7. POM Matthew Hartnett	09810	936739	ESS 03

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Virgilio Estrada	19244	943214	041 DET

Officer(s)	Allegation	Investigator Recommendation
A . SGT Christophe Pasquale	Abuse: On September 6, 2013, Sgt. Christopher Pasquale threatened to damage § 87(2)(b)'s property.	A . Substantiated
B . An officer	Discourtesy: On September 6, 2013, an officer spoke rudely to § 87(2)(b) and § 87(2)(b)	B . Unfounded
C . POM Michael Balicki	Discourtesy: On September 6, 2013, PO Michael Balicki acted rudely toward § 87(2)(b)	C . Alleged Victim Unavailable
D . POM Michael Balicki	Abuse: On September 6, 2013, PO Michael Balicki entered § 87(2)(b) in the Bronx.	D . Substantiated
E . POM Michael Balicki	Abuse: On September 6, and 7, 2013, PO Michael Balicki improperly detained § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . Officers	Abuse: On September 6, 2013, officers searched § 87(2)(b)'s property.	F . Exonerated
G . Officers	Abuse: On September 7, 2013, officers stopped § 87(2)(b)	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . Officers	Abuse: On September 7, 2013, officers entered and searched § 87(2)(b) in the Bronx.	H . Exonerated
I . Officers	Discourtesy: On September 7, 2013, officers spoke rudely to § 87(2)(b) and § 87(2)(b)	I . Exonerated
J . DTS Kenrick Arthur	Force: On September 7, 2013, Det. Kenrick Arthur used physical force against § 87(2)(b) and § 87(2)(b)	J . Exonerated
K . POM Matthew Hartnett	Force: On September 7, 2013, PO Matthew Hartnett used physical force against § 87(2)(b) and § 87(2)(b)	K . Exonerated
L . SGT Patrick Cain	Force: On September 7, 2013, Sgt. Patrick Cain used physical force against § 87(2)(b)	L . Exonerated
M . DTS Kenrick Arthur	Abuse: On September 7, 2013, Det. Kenrick Arthur threatened § 87(2)(b) and § 87(2)(b) with the use of force.	M . Unfounded
N . POM Matthew Hartnett	Abuse: On September 7, 2013, PO Matthew Hartnett threatened § 87(2)(b) and § 87(2)(b) with the use of force.	N . Unfounded
O . SGT Patrick Cain	Off. Language: On September 7, 2013, Sgt. Patrick Cain made remarks to § 87(2)(b) based upon her gender.	O . Unfounded
P . POM Michael Balicki	Discourtesy: On September 8, 2013, PO Michael Balicki spoke rudely to § 87(2)(b)	P . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 30, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via telephone.

On September 6, 2013, at approximately 7:20 p.m., § 87(2)(b) was inside her residence, located at § 87(2)(b) in the Bronx, with the victims mentioned below, when officers knocked on her front door. The following allegations resulted:

- **Allegation A – Abuse of Authority: On September 6, 2013, Sgt. Christopher Pasquale threatened to damage § 87(2)(b)'s property.**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g), it is recommended that **Allegation A** be closed as **substantiated**.
- **Allegation B – Force: On September 6, 2013, an officer spoke rudely to § 87(2)(b) and § 87(2)(b).**
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation B** be closed as **unfounded**.
- **Allegation C – Discourtesy: On September 6, 2013, PO Michael Balicki acted rudely toward § 87(2)(b).**
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation C** be closed as **victim unavailable**.
- **Allegation D – Abuse of Authority: On September 6, 2013, PO Michael Balicki entered § 87(2)(b) in the Bronx.**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is therefore recommended that **Allegation D** be closed as **substantiated**.
- **Allegation E – Abuse of Authority: On September 6, and 7, 2013, PO Michael Balicki improperly detained § 87(2)(b) and § 87(2)(b).**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation E** be closed as **unsubstantiated**.

- **Allegation F – Abuse of Authority: On September 6, 2013, officers searched § 87(2)(b) s property.**
- **Allegation G – Abuse of Authority: On September 7, 2013, officers stopped § 87(2)(b) § 87(2)(b)**
- **Allegation H – Abuse of Authority: On September 7, 2013, officers entered and searched § 87(2)(b) in the Bronx.**
- **Allegation I – Discourtesy: On September 7, 2013, officers spoke rudely to § 87(2)(b) and § 87(2)(b) § 87(2)(g)**

Thus, it is recommended that **Allegations F, G, H, and I** be closed as **exonerated**.

- **Allegation J – Force: On September 7, 2013, Det. Kenrick Arthur used physical force against § 87(2)(b) and § 87(2)(b)**
- **Allegation K – Force: On September 7, 2013, PO Matthew Hartnett used physical force against § 87(2)(b) and § 87(2)(b) § 87(2)(g)**

Thus, it is recommended that **Allegations J and K** be closed as **exonerated**.

- **Allegation L – Force: On September 7, 2013, Sgt. Patrick Cain used physical force against § 87(2)(b) § 87(2)(g)**

It is therefore recommended that **Allegation L** be closed as **exonerated**.

- **Allegation M – Abuse of Authority: On September 7, 2013, Det. Kenrick Arthur threatened § 87(2)(b) and § 87(2)(b) with the use of force.**
- **Allegation N – Abuse of Authority: On September 7, 2013, PO Matthew Hartnett threatened § 87(2)(b) and § 87(2)(b) with the use of force.**
- **Allegation O – Offensive Language: On September 7, 2013, Sgt. Patrick Cain made remarks to § 87(2)(b) based upon her gender.**

§ 87(2)(g) Thus, it is recommended that **Allegations M, N, and O** be closed as **unfounded**.

- **Allegation P – Discourtesy: On September 8, 2013, PO Michael Balicki spoke rudely to** § 87(2)(b)

§ 87(2)(g)

Thus, it is recommended that **Allegation P** be closed as **unfounded**.

- § 87(4-b) § 87(2)(g)

§ 87(2)(g)

This case was not eligible for mediation because one of the victims was arrested as a result of the incident.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a Hispanic woman who is § 87(2)(b) has black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On November 4, 2013, § 87(2)(b) was interviewed at the CCRB (encl. C1-C4). § 87(2)(b) reported two incidents: one which occurred on September 6, 2013, and the other on September 7, 2013. § 87(2)(g)

September 6, 2013:

On September 6, 2013, at approximately 7:20 p.m., § 87(2)(b) was inside of her residence, located at § 87(2)(b) in the Bronx, with her children § 87(2)(b) and § 87(2)(b) her infant grandchild § 87(2)(b) and family friends § 87(2)(b) and § 87(2)(b) when she heard knocks on her door. A male officer identified himself as an officer and asked § 87(2)(b) to open the door. § 87(2)(b) refused to open the door and asked the officer whether he had a warrant. The officer then stated that he did not have warrant.

A few hours later, an officer, identified via investigation as Sgt. Christopher Pasquale, from the Intelligence – Criminal Section, asked for § 87(2)(b) and then eventually spoke with him over the phone. While over the phone, Sgt. Pasquale mentioned that officers would “come in like gangsters” and “break down the door.” The conversation was recorded by § 87(2)(b) and § 87(2)(b) did not obtain a copy of the recording.

§ 87(2)(b) eventually surrendered to the officers outside of the apartment. § 87(2)(b) and § 87(2)(b) followed § 87(2)(b) to the door. § 87(2)(b) did not witness the officers' interaction with § 87(2)(b). However, § 87(2)(b) eventually witnessed an officer, identified via investigation as PO Michael Balicki, from the 41st Precinct, place his foot inside the doorway and state that he was allowed to enter and search the apartment. § 87(2)(b) informed PO Balicki that he could not enter the apartment and he eventually removed his foot from the doorway.

§ 87(2)(b) was then informed that officers were going to remain by her apartment because it was under investigation. At some point during the night, § 87(2)(b) ordered food to be delivered; however, she was informed by § 87(2)(b) that officers had searched the contents of the delivery person's bag prior to handing it to the occupants. § 87(2)(b) did not witness the search. Officers did not allow visitors to come to the apartment or take § 87(2)(b) out of the apartment.

September 7, 2013:

On the next day, at approximately 6:30 p.m., officers breached the front door and entered the apartment. Approximately four officers dressed in tactical gear then entered § 87(2)(b)'s bedroom, which was occupied by § 87(2)(b) and § 87(2)(b) and § 87(2)(b). During the entry, officers stated, "Move the fuck out," "Bend the fuck down," and "Fucking get down."

As the officers entered the bedroom, § 87(2)(b) asked the officers whether she could make a phone call, at which point an officer, identified via investigation as Sgt. Patrick Cain from the Emergency Service Unit, told her to "shut the fuck up" and pushed her against a nearby wall. § 87(2)(b)'s head made contact with the wall and the cell phone she was holding fell out of her hand. § 87(2)(b) and § 87(2)(b) were apprehended and handcuffed inside of § 87(2)(b)'s bedroom. Each of the occupants was eventually transported to the 41st Precinct stationhouse.

Upon her return to her apartment on the next day, § 87(2)(b) observed significant damage to her apartment, including holes in the walls, tears in furniture, and coffee poured into a television. § 87(2)(b) did not specify whether the coffee was in solid or liquid form.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a Hispanic woman who § 87(2)(b) has brown hair and brown eyes. § 87(2)(b) is § 87(2)(b)'s daughter.

CCRB Testimony

On November 4, 2013, § 87(2)(b) was interviewed at the CCRB (encl. D1-D3). § 87(2)(b) reported a third incident which occurred on September 8, 2013. § 87(2)(g)

September 6, 2013:

The officers called both the cell phones of § 87(2)(b) and § 87(2)(b). § 87(2)(b) spoke with the officers via telephone and through the door. § 87(2)(b) indicated that the officers only threatened § 87(2)(b) by stating that they were "going to enter in a gangster way." § 87(2)(b) did not have a copy of the recording.

Right after § 87(2)(b) walked out of the apartment, officers placed him in handcuffs. PO Balicki then approached § 87(2)(b) and informed her that the officers needed to search the apartment. The occupants refused to consent to any entry or search. PO Balicki did not initially allow them to shut the front door by placing one of his feet in the doorway; however, PO Balicki later removed his foot, thus allowing them to shut the door.

September 7, 2013:

§ 87(2)(b) heard officers order the occupants to “get the fuck down.” § 87(2)(b) attempted to place a call as the officers entered § 87(2)(b)'s bedroom; however, Sgt. Cain struck the cell phone out of her hand with an asp. § 87(2)(b) added that Sgt. Cain then stated, “You fucking bitch,” and, “Go against the fucking wall.” § 87(2)(b) did not seek any medical attention following this incident.

September 8, 2013:

On September 8, 2013, at approximately 3 p.m., § 87(2)(b) was alone inside the apartment when she heard knocking on the door and an unidentified officer stated, “Police.”

§ 87(2)(b) looked through her peephole and did not open the door. § 87(2)(b) saw a gold shield; however, she was not able to see the face of any officer. § 87(2)(b) recognized the voice of the unidentified officer as that of PO Balicki.

The unidentified officer eventually informed § 87(2)(b) that the officers needed to search her apartment once again and that the warrant was still valid. § 87(2)(b) did not consent to the entry or search and stated that the officers had already searched the apartment. The unidentified officer then replied, “It doesn’t fucking matter.” The officer later left the building.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. She is a Hispanic woman who § 87(2)(b) has brown hair and brown eyes. § 87(2)(b) is § 87(2)(b)'s daughter and § 87(2)(b)'s sister.

CCRB Testimony

On February 3, 2014, § 87(2)(b) was interviewed at the CCRB (encl. E1-E4). § 87(2)(g)

September 6, 2013:

§ 87(2)(b) indicated that the officers called § 87(2)(b)'s cell phone and stated, over the phone, that they could “take this in a ghetto manner.” § 87(2)(b) did not specify to whom this statement was made. Later, an unidentified officer stated, through the door, “Open the fucking door.” § 87(2)(b) did not see which officer made the remark considering that the door was shut.

PO Balicki placed one of his feet in the doorway, at which point § 87(2)(b) informed him that the officers could not enter the apartment without a warrant. At some point during the night, § 87(2)(b) attempted to exit the apartment; however, officers told her that she could not leave it. § 87(2)(b) did not make any indication that additional discourteous or offensive remarks were made.

September 7, 2013:

Officers from the Emergency Service Unit entry team had their guns drawn during the entry. An officer, who § 87(2)(b) did not describe, pushed her against a nearby wall using a bunker shield. § 87(2)(b) and § 87(2)(b) were also pushed in a similar manner.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a Hispanic man who § 87(2)(b) has black hair and brown eyes. § 87(2)(b) is § 87(2)(b)'s friend.

CCRB Testimony

On February 3, 2014, § 87(2)(b) was interviewed at the CCRB (encl. F1-F3). His statement is generally consistent with that of § 87(2)(b) and § 87(2)(b) and § 87(2)(b) and his 50-hearing testimony (O90-O127). Only significant differences and discrepancies are detailed below.

September 6, 2013:

§ 87(2)(b) stated that, when § 87(2)(b) turned himself in, PO Balicki lightly slapped him on the back of the head. § 87(2)(b) and § 87(2)(b) asked PO Balicki to remove his foot from the doorway so that they could shut the door; however, PO Balicki instead pointed a flashlight into the apartment and stated, "Make sure you don't have no guns because we're not trying to get shot." A few minutes later, PO Balicki removed his foot from the doorway.

September 7, 2013:

When the officers entered § 87(2)(b)'s bedroom, § 87(2)(b) and § 87(2)(b) were laying on a bed with their stomachs facing down. Two officers, identified via investigation as Det. Kenrick Arthur and PO Matthew Hartnett, both from the Emergency Service Unit, then stated, "Get the fuck on the bed," "Don't fucking move," and, "Move and I'm going to fucking break your arms." Det. Arthur and PO Hartnett were each carrying a bunker shield.

Det. Arthur then pushed and pressed § 87(2)(b) down against the bed three to four times using his bunker shield before handcuffing him. PO Hartnett acted in a similar manner with § 87(2)(b). § 87(2)(b) and § 87(2)(b) were then removed from the bed and placed down on the ground on their knees until they were escorted out of the bedroom.

§ 87(2)(b) sustained pain to one of his shoulders for two days due to the incident; however, he did not seek medical attention for it. § 87(2)(b) stated that coffee beans were poured on top of the television.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a Hispanic man who is § 87(2)(b) has black hair and brown eyes. § 87(2)(b) is § 87(2)(b)'s son, § 87(2)(b) and § 87(2)(b)'s brother, and § 87(2)(b)'s friend.

CCRB Testimony

On February 3, 2014, § 87(2)(b) was interviewed at the CCRB (encl. G1-G3). § 87(2)(g)

September 6, 2013:

Sgt. Pasquale called § 87(2)(b) and stated that the officers would enter the apartment in a “gangster manner” if he failed to exit it.

September 7, 2013:

Officers from the Emergency Service Unit entry team ordered the occupants to get down to the floor and then stop resisting. § 87(2)(b) was standing inside his bedroom at that point with § 87(2)(b) and § 87(2)(b) then raised their hands up. However, § 87(2)(b) later stated that he and § 87(2)(b) were instead on his bed. § 87(2)(b) stated that PO Arthur charged at him and “hit” him, causing him to fall back onto the bed. § 87(2)(b) added that PO Hartnett acted in a similar manner toward § 87(2)(b) causing him to also fall back onto the bed. § 87(2)(b) further stated that PO Arthur then pushed him down onto the bed by applying pressure onto his back with the bunker shield.

PO Arthur eventually stated, “Get the fuck on the floor,” and “Get on your stomach,” and § 87(2)(b) and § 87(2)(b) were then removed from the bed and placed down on the ground on their knees. As PO Arthur handcuffed § 87(2)(b) he pressed his forearm against § 87(2)(b)'s head, causing it to make contact with a nearby wall.

§ 87(2)(b) complained that he sustained pain to his back and soreness to his head as a result of this incident. § 87(2)(b) also complained that his handcuffs were tight and that he was left on his knees for a long period of time; however, he did not complain about any injuries to his wrists or knees. § 87(2)(b) did not seek medical attention following this incident.

Photo Array Viewings

On September 30, 2014, § 87(2)(b) and § 87(2)(b) and § 87(2)(b) viewed a photo array at the CCRB. The photo array contained the pictures of the entire Emergency Service Unit team that executed the search warrant along with those of PO Balicki, Sgt. Pasquale, PO Edouard, and PO Camilo. The viewings were not recorded.

§ 87(2)(b) identified PO Balicki as a member of the Emergency Service Unit team who executed the search warrant and ordered the occupants of the apartment to “get the fuck down.” § 87(2)(b) identified Sgt. Pasquale, PO Camilo, and Det. Moyer as officers who were simply standing outside of her apartment on September 7, 2013. § 87(2)(b) identified additional officers as members of the Emergency Service Unit who did not engage in any of the above allegations.

§ 87(2)(b) identified PO Balicki as the officer who placed his foot in her doorstep and came back on September 8, 2013. § 87(2)(b) stated that she saw PO Balicki's face through her peephole on September 8, 2013. § 87(2)(b) also identified Sgt. Cain as an Emergency Service Unit officer who instructed her to “get the fuck down” as he entered the bedroom and to “shut the fuck up.” § 87(2)(b) added that Sgt. Cain then simply grabbed her by her sides and pushed and pressed her against a nearby wall. § 87(2)(b) identified additional pictures as those of officers who did not engage in any of the above allegations.

§ 87(2)(b) did not recognize any of the pictures.

On October 6, 2014, § 87(2)(b) viewed the same photo array as those shown to the rest of the available victims. The viewing was not recorded.

§ 87(2)(b) identified PO Edouard as the Emergency Service Unit officer who proceeded to “hit” and “assault” him on the back with the flat surface of his bunker shield inside one of the bedrooms, causing redness. § 87(2)(b) could not detail the alleged force any further. § 87(2)(b) identified PO Balicki as the officer who placed his foot on the doorstep. § 87(2)(b) also identified additional officers as officers who did not engage in any of the above allegations.

Attempts to Contact Civilians

Between April 7, and September 30, 2014, multiple contact attempts were made to § 87(2)(b) all of which were unsuccessful. A December 9, 2014, inquiry with the New York City Department of Correction Inmate Lookup database revealed that § 87(2)(b) was not incarcerated at the time of the contact attempts nor of the inquiry (encl. Q1). To date, § 87(2)(b) has not contacted the CCRB in regard to cooperating with its investigation and all contact attempts to him have been exhausted.

NYPD Statements:

Subject Officer: PO MICHAEL BALICKI

- *PO Balicki was § 87(2)(b) at the time of the incident. He is a white man, § 87(2)(b) and has blond hair and blue eyes.*
- *On September 6, and 7, 2013, PO Balicki was assigned as an Assistant Field Intelligence Officer. On those dates, PO Balicki was dressed in plainclothes and was assigned to an unmarked patrol car. On September 6, 2013, PO Balicki worked with Sgt. Pasquale, PO Fidanza, and Det. Edouard, from 11 a.m. to 2:35 a.m. on the next day. On September 7, 2013, PO Balicki worked with PO Fidanza from 8 a.m. to 4:35 a.m. on the next day.*
- *On September 8, 2013, PO Balicki did not work and instead had a regular day off.*

Arrest Report Numbers B13662418, § 87(2)(b)

§ 87(2)(a) 160.50

Each of the arrests was voided (enc. I8-I23).

Memo Book Entries

September 6, 2013: At 7:20 p.m., PO Balicki left the stationhouse with Sgt. Pasquale, PO Derrick Edouard, PO Emmanuel Camilo, and PO Stephanie Fidanza, each from the 41st Precinct. At 7:34 p.m., PO Balicki arrived at § 87(2)(b) to conduct an investigation into a robbery. At 1:53 a.m., PO Balicki was relieved from his post. At 2:20 a.m., PO Balicki conducted an investigation in regards to the apprehension of § 87(2)(b) at § 87(2)(b)

September 7, 2013: At 6:50 p.m., search warrant number § 87(2)(b) was executed inside of § 87(2)(b). At 7:15 p.m., a search of the apartment was conducted. § 87(2)(b) and § 87(2)(b) were apprehended. At 9:35 p.m., the search was concluded. Two Samsung cell phones were recovered along with possible gunpoint robbery proceeds.

September 8, 2013: PO Balicki only made an entry indicating that he had a regular day off (encl. I1-I7).

CCRB Testimony

On May 28, 2014, PO Balicki was interviewed at the CCRB (encl. I24-I26). His statement is summarized below.

September 6, 2013:

At approximately 7:20 p.m., PO Balicki arrived at § 87(2)(b) with Det. Edouard, PO Fidanza, PO Camilo, and Sgt. Pasquale to apprehend § 87(2)(b) who was believed to have engaged in armed robberies. At some point, § 87(2)(b) exited apartment number § 87(2)(b). No firearm was recovered from § 87(2)(b) and he was placed under arrest.

PO Balicki then spoke with § 87(2)(b) and asked her permission to enter and search the apartment for evidence of § 87(2)(b) crimes, including a firearm. § 87(2)(b) refused to consent to the entry and search, and asked PO Balicki to obtain a warrant. PO Balicki then explained that he had probable cause for a warrant and that if a search warrant was to be executed, a tactical team would be executing it. PO Balicki again requested consent for the entry and search, which was also denied.

During his conversation with § 87(2)(b) PO Balicki placed his foot in the doorway. The door was cracked open and part of PO Balicki's foot was inside the apartment. PO Balicki placed his foot in the doorway to speak with § 87(2)(b) about obtaining consent for the search and to observe the interior of the apartment because he believed it contained a firearm. PO Balicki did not consider any of the remaining occupants of the apartment to be subjects in his investigation.

Thereafter, the apartment was "frozen" by assigning officers to guard the front door, rooftop, and outside of the windows, to ensure that no civilian enters or exits the apartment and that no evidence is discarded pending the securing of a search warrant. Either PO Balicki or Sgt. Pasquale mentioned to § 87(2)(b) at the time of the above conversation, that the apartment would be frozen and that no civilian could enter or exit it.

Sgt. Pasquale and PO Balicki were the only officers by the front door speaking with § 87(2)(b). PO Balicki denied hearing Sgt. Pasquale speak with any additional civilians. PO Balicki denied interacting with § 87(2)(b) at the time of his apprehension. PO Balicki denied hearing Sgt. Pasquale threaten any civilian that officers were going to enter the apartment "like gangsters" or break the door open. PO Balicki denied saying, "Open the fucking door," or hearing any officers do so. PO Balicki denied using profanity, or hearing any officers do so.

September 7, 2013:

At approximately 6:50 p.m., PO Balicki and PO Fidanza arrived at § 87(2)(b). At that point, an Emergency Service Unit entry team executed the search warrant and secured the apartment. Officers then entered and searched the apartment and the apprehended civilians were then handed over to them. DI Philip Rivera, from the 41st Precinct, was present at the time of the execution of the search warrant.

During the execution of the search warrant by Emergency Service Unit personnel, PO Balicki heard voices come from the apartment; however, he could not distinguish what they were saying. PO Balicki added that the front door to the apartment was kept shut during said execution.

September 8, 2013:

On September 8, 2013, PO Balicki had a regular day off. PO Balicki denied being aware of any officers responding to the incident location on September 8, 2013.

Subject Officer: SGT. CHRISTOPHER PASQUALE

- Sgt. Pasquale was § 87(2)(b) at the time of the incident. He is a white man, § 87(2)(b) and has brown hair and brown eyes.
- On September 6, 2013, Sgt. Pasquale was assigned as the 41st Precinct Field Intelligence Officer. Sgt. Pasquale was dressed in plainclothes and was assigned to an unmarked patrol car with PO Balicki, Det. Edouard, PO Camilo, and PO Fidanza. Sgt. Pasquale worked from 8 a.m. on September 6, 2013, to 2:25 a.m. on September 7, 2013.

- On September 7, and 8, 2013, Sgt. Pasquale did not work and instead had regular days off.

Memo Book Entries

September 6, 2013: At 7:34 p.m., Sgt. Pasquale arrived at § 87(2)(b) with PO Balicki, Det. Edouard, PO Camilo, and PO Fidanza, in regard to a robbery investigation.

September 7, 2013: PO Balicki only made an entry indicating that he had a regular day off.

September 8, 2013: Sgt. Pasquale only made an entry indicating that he had a regular day off (encl. J1-J3).

CCRB Testimony

On July 29, 2014, Sgt. Pasquale was interviewed at the CCRB (encl. J5-J6). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

September 6, 2013:

PO Camilo and PO Fidanza, may have been guarding the rooftop during the incident. A man, which may have been § 87(2)(b) responded through the door, without opening it.

At some point, a delivery man arrived in front of the apartment, knocked on the door, and then called § 87(2)(b) number. Sgt. Pasquale could hear a phone ring as the delivery man called said number. However, no one answered the phone or the door for the delivery man. DI Rivera eventually arrived at the scene and Sgt. Pasquale spoke with § 87(2)(b) over the phone.

Sgt. Pasquale denied observing PO Balicki slap § 87(2)(b). Sgt. Pasquale denied telling § 87(2)(b) that the officers were going to force their way into the apartment or come in “like gangsters.” Instead, Sgt. Pasquale stated that he simply informed the occupants of the apartment that the officers were going to go secure a search warrant to search the premise.

Prior to this incident, Sgt. Pasquale had identified § 87(2)(b) as the owner of the cell phone number used to contact the victims of the robberies, prior to their commitment, via a Facebook search. Moreover, the victims of the robberies identified § 87(2)(b) as the perpetrator from photo arrays. Sgt. Pasquale subsequently generated two I-cards for § 87(2)(b) in regard to the criminal incidents, indicating that probable cause for his arrest exists.

September 7, 2013:

On September 7, 2013, Sgt. Pasquale had a regular day off.

September 8, 2013:

On September 8, 2013, Sgt. Pasquale had a regular day off.

Additional Officers Interviewed

On May 28, 2014, PO Virgilio Estrada, from the 41st Precinct Detective Squad, was interviewed at the CCRB because he is listed as § 87(2)(b) arresting officer. However, PO Estrada denied being present at the time of the incidents, which was confirmed by his memo book entries, despite being the investigator assigned to the case related to this incident (K1-K5).

On October 30, 2014, Det. Arthur was interviewed at the CCRB because he is the subject officer of allegations; however, he did not remember the incident. Det. Arthur was shown a copy of the Emergency Service Unit reports generated for this incident and photographs of the victims, none of which helped him remember the incident. Moreover, Det. Arthur was given a synopsis of this incident which also did not help him remember the incident. Det. Arthur did not make a memo book entry in regard to this incident (encl. L1-L4).

Officers Not Interviewed

§ 87(2)(g)

NYPD Documents

41st Precinct Roll Calls

The September 6, 2013, Roll Call indicates that PO Balicki, PO Edouard, and PO Camilo were assigned as Assistant Field Intelligence Officers. Sgt. Pasquale and PO Fidanza are not listed on the Roll Call.

The September 7, 2013, Roll Call indicates that PO Balicki and PO Fidanza were assigned as Field Intelligence Officers. PO Edouard is not listed on the Roll Call (encl. M1-M15).

No September 8, 2013, Roll Call was obtained; however, the undersigned investigator called the 41st Precinct Roll Call on December 9, 2014, and spoke with SPAA Wright who stated that PO Balicki had a regular day off on September 8, 2013.

Search Warrant Number § 87(2)(b)

The warrant, signed by New York State Supreme Court Justice § 87(2)(b) on § 87(2)(b) indicates that officers were authorized to enter and search § 87(2)(b) without prior notice to its occupants, for three cell phones, a firearm, car keys, and proceeds from robberies (encl. M16).

Emergency Service Unit ESD2 Report

The report indicates that ESU units TK-3, A4, B3, and U4, along with two officers from an unidentified unit, executed search warrant number § 87(2)(b) at § 87(2)(b) PO Balicki is listed as the reporting officer. The report also indicates that two men and two women were handcuffed, and that one woman and a child were not handcuffed (encl. M17-M19).

Emergency Service Unit Warrant Execution Supplemental Report

Det. Arthur and PO Hartnett are each listed as assigned to a bunker shield. Sgt. Cain is also listed as a member of the entry team (encl. M20-M21).

Complaint Report Numbers § 87(2)(b) **and** § 87(2)(b) **, and Arrest Report Numbers** § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b)

Attempts to Obtain Event Summary Report

On October 28, 2014, the undersigned investigator submitted to IAB a request for any Event Summary Report generated for September 8, 2013, for the incident location (encl. S69). On

November 21, 2014, the undersigned investigator received from IAB the above request back with a note indicating that no such report was found (encl. M56-M57).

Attempts to Obtain Audio Recording

On May 28, 2014, the undersigned investigator spoke with § 87(2)(b) via telephone, who stated that the audio recording was captured using § 87(2)(b) cell phone and that she and her family was not in possession of it. All attempts to contact § 87(2)(b) were unsuccessful and were exhausted.

Arrests for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED].

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) and § 87(2)(b) and their attorney, § 87(2)(b), filed Notices of Claims with the City of New York on § 87(2)(b). The Notices claim that the claimants were falsely arrested, assaulted and battered, that their property was damaged, that their constitutional rights were violated, and that they are seeking an unspecified amount of money as redress (encl. O1-O5).
- On October 28, 2014, the undersigned investigator submitted an inquiry to the City of New York Office of the Comptroller in regard to any Notice of Claim filed by § 87(2)(b) in regard to this incident. To date, no response to the inquiry has been received, and any such response will be added to the case file upon its receipt.

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED].

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B7).
- § 87(2)(b) and § 87(2)(b) and § 87(2)(b) have not previously filed a CCRB complaint (encl. B9-B12).
- § 87(2)(b) has previously filed the following CCRB complaint:
 - § 87(2)(b)
[REDACTED]
[REDACTED]
[REDACTED]

Subject Officers CCRB History

- Sgt. Pasquale has been a member of the service for fourteen years and there are no substantiated CCRB allegations against him (encl. B1).
- PO Balicki has been a member of the service for eleven years and there are no substantiated CCRB allegations against him (encl. B2).
- Det. Arthur has been a member of the service for twenty-three years and there are no substantiated CCRB allegations against him (encl. B3).
- PO Hartnett has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. B4).
- Sgt. Cain has been a member of the service for twelve years and there is one substantiated CCRB allegation against him (encl. B5-B6):
 - In CCRB case number 201009977, Sgt. Cain was found to have improperly searched an individual and the CCRB recommended that he receive a Command Discipline. Sgt. Cain eventually received Instructions from the NYPD.

Conclusion

Identification of Subject Officers

Sgt. Pasquale indicated that he was the officer who spoke with § 87(2)(b) over the phone on September 6, 2013. PO Balicki admitted to placing his foot in the doorway and informing the occupants of the apartment that they could not enter or leave the premise on September 6, 2013. Multiple civilians, including § 87(2)(b) confirmed that PO Balicki was one of the subject officers from viewing a photo array. Sgt. Cain is listed, in NYPD documents, as having been present at the scene and § 87(2)(b) identified him as one of the subject officers from the September 7, 2013, incident during the photo array. Det. Arthur and PO Hartnett were identified as subject officers because they match their descriptions and § 87(2)(b) and § 87(2)(b) indicated that two of the subject officers were assigned to bunker shields, which corresponds to the officers' assignment.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: On September 6, 2013, Sgt. Christopher Pasquale threatened to damage § 87(2)(b)'s property.

It is undisputed that the occupants of the apartment repeatedly refused to consent to the entry and search of the apartment. § 87(2)(g)

Civilian statements indicate that Sgt. Pasquale stated to § 87(2)(b) over the phone, that officers were going to enter the apartment in a “gangster” or “ghetto” manner and that they were

going to break the front door open. § 87(2)(b) added that Sgt. Pasquale indicated that the entry would occur if § 87(2)(b) failed to exit the apartment.

Civilian statements also indicate that the threat was captured in an audio recording and that § 87(2)(b) was the only person in possession of it. However, all contact attempts to § 87(2)(b) were unsuccessful and were exhausted. None of the officers interviewed corroborated the civilian statements in regard to the above-mentioned threat.

Although Sgt. Pasquale denied having made the alleged threat, he did indicate that he was the officer who spoke with § 87(2)(b) over the phone. Sgt. Pasquale also admitted to later telling the occupants of the apartment that the officers were going to secure a search warrant for the premise.

It has been long determined that officers are allowed the conduct a warrantless entry and search of a premise, provided that there is probable cause, if exigent circumstances exist or consent is given. See People v. Payton, 445 U.S. 573 (1980) and People v. McBride, 14 N.Y.3d 440 (2010). (encl. A72-A102).

Additionally, the court held in People v. Gonzalez, 39 N.Y.2d 122 (1976) that consent is “voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice,” and that “voluntariness is incompatible with official coercion, actual or implicit, over or subtle” (encl. A103-A109).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Thus, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Force: On September 6, 2013, an officer spoke rudely to § 87(2)(b)

and § 87(2)(b)

§ 87(2)(b) alleged that an unidentified officer, who she did not see, instructed the occupants of the apartment to “open the fucking door.” None of the additional parties interviewed corroborated § 87(2)(b)'s statement in regard to the above alleged discourteous remark. Instead, additional civilian statements indicate that the occupants were simply repeatedly instructed to open the door without using the alleged discourteous expletive. § 87(2)(g)

it is recommended that **Allegation B** be closed as **unfounded**.

Allegation C – Discourtesy: On September 6, 2013, PO Michael Balicki acted rudely toward § 87(2)(b)

§ 87(2)(b) indicated that PO Balicki lightly slapped the back of § 87(2)(b) head as soon as he exited the apartment. However, PO Balicki denied having slapped § 87(2)(b) and none of the additional interviewed parties indicated that they witnessed him do so, thus casting doubt on the allegation. Moreover, all contact attempts to § 87(2)(b) were unsuccessful and exhausted.

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation C** be closed as **victim unavailable**.

Allegation D – Abuse of Authority: On September 6, 2013, PO Michael Balicki entered § 87(2)(b) in the Bronx.

It is undisputed that the occupants of the apartment repeatedly refused to allow the officers to enter and search the premise without their securing a search warrant.

Multiple civilian statements indicate that PO Balicki placed his foot in the doorway of the apartment, keeping the door from being shut, despite the occupants' repeated refusals for the officers to enter. PO Balicki admitted to placing his foot in the doorway and even stated that part of his foot was past the doorway and inside the apartment. PO Balicki explained that he placed his foot in the doorway to speak with § 87(2)(b) who was standing by the door, and to observe the interior of the apartment because he believed it contained a firearm. PO Balicki added that he did not believe that any of the remaining occupants were suspects of the investigation.

According to People v. Reese, 799 N.Y.S.2d 163 (2004), an officer placing his leg in the doorway of a front door to a premise constitutes an entry of said premise (encl. A1-A4). Moreover, People v. Coles, 105 A.D.3d 1360 (4th Dept. 2013), held that officers are allowed to make a warrantless entry into a premise, without consent, whenever they are aware of exigent circumstances in addition to having obtained probable cause. It also detailed that the factors to consider in determining whether exigent circumstances exist are the nature and degree of urgency involved and the amount of time needed to obtain a warrant, a reasonable belief that contraband is about to be removed, the possibility of danger to police officers guarding the site of the contraband while a search warrant is sought, and information indicating that the possessors of the contraband are aware that the police are on their trail (encl. A5-A7).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] it is therefore recommended that **Allegation D** be closed as **substantiated**.

Allegation E – Abuse of Authority: On September 6, and 7, 2013, PO Michael Balicki improperly detained § 87(2)(b)
and § 87(2)(b)

It is undisputed that the officers kept the occupants of the apartment from leaving the premise for approximately twenty-four hours until the execution of the search warrant. PO Balicki admitted to informing the occupants that they could not leave the apartment pending the receipt of the warrant.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: On September 6, 2013, officers searched § 87(2)(b)
s property. § 87(2)(b)

Allegation G – Abuse of Authority: On September 7, 2013, officers stopped § 87(2)(b)
§ 87(2)(b)

Allegation H – Abuse of Authority: On September 7, 2013, officers entered and searched § 87(2)(b)
in the Bronx.

Allegation I – Discourtesy: On September 7, 2013, officers spoke rudely to § 87(2)(b)
and § 87(2)(b)

It is undisputed that officers kept civilians from entering or exiting the apartment pending the issuance of a search warrant. It is also undisputed that the officers eventually obtained a search warrant for the apartment, at which point Emergency Service Unit personnel executed it.

§ 87(2)(b) indicated that § 87(2)(b) actually attempted to leave the apartment at which point she was stopped from doing so. All civilian statements indicate that officers instructed the occupants of the apartment, with the use of profanity, to get down to the floor and cooperate with the Emergency Service Unit entry team executing said warrant.

The courts have determined that officers are allowed to secure, or “freeze,” a premise while awaiting the procurement of a search warrant to preserve the status quo of said premise, thus preventing the destruction of evidence sought as part of an investigation. See *People v. Segura*, 468 U.S. 796 (1984) and *People v. Arnau*, 58 N.Y.2d 27, (1982). (encl. A8-A42).

According to PD v. Woods, OATH Index No. 78518/03 (2003), and PD v. Dukes, OATH Index Nos. 1137-39/00 (2000), officers are allowed to use profanity in intense enforcement situations, including those involving suspected possessions of firearms, and also when “attempting to ensure” an individual’s submission during his apprehension (encl. A42-A68).

§ 87(2)(g)

Thus, it is recommended that **Allegations F, G, H, and I** be closed as **exonerated**.

Allegation J – Force: On September 7, 2013, Det. Kenrick Arthur used physical force against § 87(2)(b) and § 87(2)(b)

Allegation K – Force: On September 7, 2013, PO Matthew Hartnett used physical force against § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) indicated that he and § 87(2)(b) were instructed to get down to the floor and that they however remained standing up and eventually sat down on a bed. § 87(2)(b) indicated that Sgt. Cain and PO Hartnett then pushed him and § 87(2)(b) down against the bed, using bunker shields, before handcuffing them on the floor. § 87(2)(b) added that while being handcuffed, Det. Arthur pressed his head against a nearby wall. However, § 87(2)(b) stated that he and § 87(2)(b) were stomach down on the bed before the officers proceeded to push them down.

§ 87(2)(g)

Thus, it is recommended that **Allegations J and K** be closed as **exonerated**.

Allegation L – Force: On September 7, 2013, Sgt. Patrick Cain used physical force against § 87(2)(b)

§ 87(2)(b) alleged that, after being instructed to get down, she remained standing up and attempted to place a phone call, at which point Sgt. Cain struck her hand with an asp, causing her cell phone to fall out of her hand, and pushed her against a nearby wall before handcuffing her. § 87(2)(b) and § 87(2)(b) indicated that § 87(2)(b) was instead simply pushed against the wall. At the time she viewed the photo array, § 87(2)(b) stated that Sgt. Cain, instead simply grabbed her and pushed her against the wall. § 87(2)(b) only reported having sustained minor injuries for which she did not seek medical attention.

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **exonerated**.

Allegation M – Abuse of Authority: On September 7, 2013, Det. Kenrick Arthur threatened § 87(2)(b) and § 87(2)(b) with the use of force.

Allegation N – Abuse of Authority: On September 7, 2013, PO Matthew Hartnett threatened § 87(2)(b) and § 87(2)(b) with the use of force.

Allegation O – Offensive Language: On September 7, 2013, Sgt. Patrick Cain made remarks to § 87(2)(b) based upon her gender.

§ 87(2)(b) alleged that Det. Arthur and PO Hartnett threatened to break his arms and those of § 87(2)(b) who was present, if they moved. § 87(2)(b) also alleged that Sgt. Cain called her a “fucking bitch” before ordering her to get against a wall. § 87(2)(b) indicated that § 87(2)(b) and § 87(2)(b) were present.

§ 87(2)(g)

§ 87(2)(g)

Thus, it is recommended that **Allegations M, N, and O** be closed as **unfounded**.

Allegation P – Discourtesy: On September 8, 2013, PO Michael Balicki spoke rudely to

§ 87(2)(b)

§ 87(2)(b) first stated, in her sworn statement, that an officer, whose face she did not see but voice she recognized as that of PO Balicki, came to her door and spoke rudely to her through it. § 87(2)(b) added that the officer informed her that he wished to enter her apartment as part of the investigation related to this incident. However, § 87(2)(b) later stated, upon viewing a photo array, that she saw PO Balicki’s face through her peephole during the above conversation. PO Balicki denied being present at the time of the incident and instead stated that he had a regular day off, which was confirmed by his memo book entries and SPAA Wright.

§ 87(2)(g)

Thus, it is recommended that **Allegation P** be closed as **unfounded**.

§ 87(4-b), § 87(2)(g)

Team: 3

Investigator: _____ Keyne Jean Villert _____
Signature Print Date

Supervisor: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date

Reviewer: _____ _____ _____
Title/Signature Print Date